

agreement, Defendant agrees the court can enter judgment against Defendant in the amount of \$19,925.72 plus costs.

One caveat: Plaintiff requests costs of \$498.00. The Court financial records show an initial filing fee of \$370.00, a filing fee for the stipulation and order for \$20.00, and a filing fee for the instant motion of \$60.00. Plaintiff has not supplied adequate evidence by declaration or memorandum of costs otherwise. Costs are awarded in the amount of \$450.00.

4. CU0000090 Matthew Palleschi, et al. v. Daniel Fraiman Construction, Inc., et al.

On the Court's motion, the hearing for this discovery matter is continued to April 17, 2026, at 10:00 a.m.

The Court grants Plaintiff Palleschi's motion for an order deeming its Requests for Admission (Set Three) directed to Defendant Daniel Fraiman Construction, Inc. ("DFC, Inc.") as admitted, unless DFC serves substantially compliant responses before the scheduled hearing. The Court denies, as moot, Plaintiff's motion for an order directing Defendant DFC, Inc. to provide further responses to Plaintiff's Requests for Admission (Set Three) and related Plaintiff's Construction Form Interrogatory No. 326.1. The motion for monetary sanctions against DFI, Inc. and its counsel is granted.

Plaintiff argues the Court should order that the truth of all matters specified in Plaintiff's requests for admission, set three, be deemed admitted because Defendant DFC, Inc. failed to serve verified responses to Plaintiff's Requests for Admission, Set Three ("RFAs"). DFC, Inc. argues it served compliant, verified responses and that the motion to deem admitted is inappropriate as a matter of law. Plaintiff has the better argument.

"The party to whom the requests for admission are directed shall sign the response under oath, unless the response contains only objections."¹ Code Civ. Proc. § 2033.240(a). "If that party is a private corporation . . . *one of its officers or agents shall sign the response under oath on behalf of that party.*" Code Civ. Proc. § 2033.240(b) (italics supplied).

A "response to [an] RFA ...fail[s] to conform to the statutory prescription" if "it was not signed by a party and was not under oath." *Allen-Pacific, Ltd. v. Superior Court* (1997) 57 Cal.App.4th 1546, 1550–1551, *disapproved on other grounds by Wilcox v. Birtwhistle* (1999) 21 Cal.4th 973 "Unsworn [or unverified] responses are tantamount to no responses at all." *Allen Pacific, Ltd. v. Superior Court* (1997) 57 Cal.App.4th 1546, 1550-1551, *citing Appleton v. Superior Court* (1988) 206 Cal. App. 3d 632, 636 and *Zorro Inv. Co. v. Great Pacific Securities Corp.* (1977) 69 Cal.App.3d 907, 914.

A party may move for an order deeming the request for admissions admitted if the party to whom they are directed has failed to serve a timely response. Code Civ. Proc. § 2033.280(b). More specifically:

¹ The exception to this requirement, for responses with only objections, is not at issue.

In the event responses to RFAs are not timely served, the responding party waives any objections thereto (§ 2033.280, subd. (a)), and “[t]he requesting party may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted, as well as for a monetary sanction” (id. subd. (b)). Unless the court determines that the responding party “has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220,” it must order the RFAs deemed admitted. (Id. subd. (c).) “[A] deemed admitted order establishes, by judicial fiat, that a nonresponding party has responded to the requests by admitting the truth of all matters contained therein.” (Wilcox, supra, 21 Cal.4th at p. 979, 90 Cal.Rptr.2d 260, 987 P.2d 727.) The court must also impose monetary sanctions upon the party and/or the attorney for the failure to serve a timely response to the RFAs. (§ 2033.280, subd. (c).) But a responding party’s service, prior to the hearing on the “deemed admitted” motion, of substantially compliant responses, will defeat a propounding party’s attempt under section 2033.280 to have the RFAs deemed admitted. (Tobin v. Oris (1992) 3 Cal.App.4th 814, 827, 4 Cal.Rptr.2d 736 (Tobin).) As one court put it: “If the party manages to serve its responses before the hearing, the court has no discretion but to deny the motion. But woe betide the party who fails to serve responses before the hearing. In that instance the court has no discretion but to grant the admission motion, usually with fatal consequences for the defaulting party. One might call it ‘two strikes and you’re out’ as applied to civil procedure.” (Demyer v. Costa Mesa Mobile Home Estates (1995) 36 Cal.App.4th 393, 395–396, 42 Cal.Rptr.2d 260, fns. omitted (Demyer).)

St. Mary v. Superior Court (2014) 223 Cal.App.4th 762, 776.

At bar, the verification in connection with Defendant DFC, Inc.’s response to the request for admissions is legally inadequate. While Daniel Fraiman apparently signed the verification, there is no adequate indication that he executed the same as an officer or agent *on behalf of* the party requested to make the admission. See 3/16/26 Pl. Mot., Ex D. Indeed, the portion of the verification that calls for identification of the position of Fraiman vis a vis DFC, Inc. is left blank.² The verification purportedly on behalf of DFC, Inc. does not meet the requirement that an officer or agent of the private party “shall sign the response under oath *on behalf of that party*.” Code Civ. Proc. § 2033.240(b) (italics supplied).³

The conduct of Defendant necessitated this motion. Sanctions are mandatory and appropriate. See Code Civ. Proc. 2033.280(c). Sanctions are awarded jointly and severally against DFC, Inc. and its counsel.

² On at least one previous verification, no such omission was made. See, e.g., 3/16/26 Pl. Mot., Ex G.

³ Plaintiff has advised the Court that DFC, Inc. is apparently not a going concern and was never a proper party to this action. Per Plaintiff, “Daniel Fraiman Construction” is the correct party. The Court defers to the parties to address this situation as deemed appropriate.

Plaintiff Ksenia Novikov's unopposed motion to continue the mandatory settlement conference and trial dates is granted. Appearances required by the parties, who shall meet and confer in advance regarding appropriate new dates for trial, pretrial conference and settlement conference.

Legal Standard

Continuances are granted only on an affirmative showing of good cause requiring a continuance." *In re Marriage of Falcone & Fyke* (2008) 164 Cal.App.4th 814, 823. A trial court has broad discretion in considering a request for a trial continuance. *Pham v. Nguyen* (1997) 54 Cal.App.4th 11, 13-18. California Rules of Court, rule 3.1332 sets forth factors for the Court to consider in ruling on a motion to continue trial.

Although "disfavored, each request for a continuance must be considered on its own merits. The court may grant a continuance only on an affirmative showing of good cause requiring the continuance." Cal. Rules Ct., Rule 3.1332(c). Circumstances that may indicate good cause includes "[a] party's excused inability to obtain essential testimony, documents, or other material evidence despite diligent efforts." Cal. Rules Ct., Rule 3.1332(c)(6).

In ruling on a motion or application for continuance, the court must consider all the facts and circumstances that are relevant to the determination. These may include: 1. The proximity of the trial date; 2. Whether there was any previous continuance, extension of time, or delay of trial due to any party; 3. The length of the continuance requested; 4. The availability of alternative means to address the problem that gave rise to the motion or application for a continuance; 5. The prejudice that parties or witnesses will suffer as a result of the continuance; 6. If the case is entitled to a preferential trial setting, the reasons for that status and whether the need for a continuance outweighs the need to avoid delay; 7. The court's calendar and the impact of granting a continuance on other pending trials; 8. Whether trial counsel is engaged in another trial; 9. Whether all parties have stipulated to a continuance; 10. Whether the interests of justice are best served by a continuance, by the trial of the matter, or by imposing conditions on the continuance; and 11. Any other fact or circumstance relevant to the fair determination of the motion or application.

Cal. Rules of Court, rule 3.1332(d).

In determining whether to reopen discovery, the court must consider the necessity of and reasons for the additional discovery, the diligence or lack thereof by the party seeking to reopen discovery in attempting to complete discovery prior to the cutoff, whether permitting the discovery will prevent the case from going forward on the trial date or will otherwise prejudice any party, and any past continuances of the trial date. See Code Civ. Proc., § 2024.050, subd. (b).

Discussion

Plaintiff requests a trial continuance and related trial dates and discovery cutoffs from the currently scheduled trial date of May 5, 2026. She states a continuance is warranted to continue